

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30						1. REQUISITION NO. See SCHEDULE		PAGE 1 OF 27					
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NO.		5. SOLICITATION NUMBER 030ADV26Q0117		6. SOLICITATION ISSUE DATE 05-06-2026					
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Curl, Brian				b. TELEPHONE NO. (No Collect Calls) (202) 707-3090		8. OFFER DUE DATE/LOCAL TIME 05-20-2026 12:00 PM					
9. ISSUED BY Contracts and Grants Directorate Library of Congress 101 Independence Ave. SE LA 325 Washington DC 20540-9411				CODE 0300		10. THIS ACQUISITION IS ☐ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☒ UNRESTRICTED OR ☐ SET ASIDE: _____ % FOR: ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM NAICS: ☐ EDWOSB SIZE STANDARD: ☐ 8(A)							
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		☐ 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		13b. RATING N/A		14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP					
15. DELIVER TO See Section F for delivery instructions.				CODE DELIVERY		16. ADMINISTERED BY Contracts & Grants Directorate Library of Congress LA 325 101 Independence Av SE Washington DC 20540-9411							
17a. CONTRACTOR/OFFEROR CODE				FACILITY CODE				18a. PAYMENT WILL BE MADE BY CODE 9110 Submit Invoices through: https://www.ipp.gov/ Washington DC 20540 PHONE: FAX:					
TELEPHONE NO. UEI: EFT:				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM									
19. ITEM NO.		20. See CONTINUATION Page SCHEDULE OF SUPPLIES/SERVICES				21. QUANTITY		22. UNIT		23. UNIT PRICE		24. AMOUNT	
		(Use Reverse and/or Attach Additional Sheets as Necessary)											
25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page								26. TOTAL AWARD AMOUNT (For Govt. Use Only)					
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED								☒ ARE ☐ ARE NOT ATTACHED. ☐ ARE ☐ ARE NOT ATTACHED					
30a. SIGNATURE OF OFFEROR/CONTRACTOR						31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)							
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)				30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) Curl, Brian				31c. DATE SIGNED			

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SECTION B - SUPPLIES OR SERVICES AND PRICE/COSTS

B.1 PRICE/COST SCHEDULE

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001		1.00	LOT	_____	_____
	Braillo 600 SR2 Embosser with compressor, including shipping, installation, training, and four-year warranty in accordance with Section C Contract Period: Base POP Begin: 08-01-2026 POP End: 10-31-2026			_____	_____
				GRAND TOTAL	_____

B.2 LC52.212-2 SUPPLEMENTAL LICENSE AGREEMENTS (JUL 2017)

The Library does not agree to licensing agreements or any other provisions that attempt to: (1) replace an order as the governing contract; (2) establish new or supplemental payment terms; or, (3) affect the legal relationships of the parties. Notwithstanding any clauses in this contract or order, or the contractual vehicles against which the order is placed, that establish order of precedence, the rights and obligations provided by this contract or order take precedence over the rights and obligations set forth in any licensing agreements provided to the Library.

The Library's incorporation of a licensing agreement into this contract or order excludes all terms of the licensing agreement that contravene, modify or conflict with the terms of [36 C.F.R. 701.7](https://www.ecfr.gov/cgi-bin/text-idx?SID=87a865ce2bd109313a951a3d477895d8&mc=true&node=se36.3.701_17&rgn=div8) available at: https://www.ecfr.gov/cgi-bin/text-idx?SID=87a865ce2bd109313a951a3d477895d8&mc=true&node=se36.3.701_17&rgn=div8.

(End of Clause)

B.3 LC52.216-3 CONTRACT TYPE (JUN 2016)

This is a solicitation for a Firm Fixed Price contract.

(End of Clause)

SECTION C - DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

Braillo 600 SR2 Statement of Work

C.1 BACKGROUND

The National Library Service for the Blind and Print Disabled (NLS), a program of the Library of Congress, provides accessible reading materials and services to individuals who are blind, visually impaired, or have physical disabilities that prevent them from reading standard print.

The National Library Service for the Blind and Print Disabled requires a replacement Braillo 600 SR2 so it may continue to produce braille material with dots at least 0.5 mm high, meeting the minimum requirement of 0.48 mm (or 0.46 mm in some regions) set by NLS and the European Commission.

The current Braillo embosser in use at NLS is deteriorating, necessitating a new Braillo 600 SR2. Replacement of the deteriorating embosser would allow NLS to continue to provide high-volume, reliable, and high-quality braille production (1,800 pages-per-hour) for continuous, long-term operation. A new Braillo embosser would allow continued production of consistent, professional-grade braille, backed by a basic 3-year warranty, using paper rolls for efficient, unattended, and cost-effective daily production. An additional year of warranty coverage shall be provided if NLS uses Braillo/ATC braille paper, totaling 4 years of warranty coverage.

C.2 SCOPE

The contractor shall provide one Braillo 600 SR2 embosser unit with compressor including installation, training, freight, and a four year warranty.

C.3 CONTRACTOR REQUIREMENTS

The Contractor shall supply one (1) Braillo 600 SR2 unit with compressor with the specifications and requirements described in this Statement of Work. The Contractor shall furnish all necessary transportation, labor, materials, tools, parts, diagnostic and test equipment, technical manuals and publications, product training, installation, and other services as may be required to deliver and provide warranty service for multifunction equipment purchased under this contract.

The Contractor shall provide warranty services, for a period of no less than four (4) years, as requested for multifunction equipment purchased under this contract. This shall include three (3) years of standard warranty coverage, and an additional year of warranty coverage if NLS uses Braillo/ATC braille paper for production of braille. The Contractor shall

furnish these supplies and services as directed by the Contracting Officer's Representative (COR) or other authorized individual under this contract.

C.3.1 Condition of Equipment:

The Contractor shall provide the Library with equipment that is free from defects and in factory new condition (no refurbished, B stock, C stock, gray market or black market parts or devices).

C.3.2 Training:

The Contractor shall provide training services to Library staff on use of Braillo 600 SR2 equipment purchased under this contract. Training sessions shall be one (1) hour in length and shall include an overview of all features available for the specific model/configuration. The contractor shall provide a total of two (2) training sessions, one for each division/office within NLS. To ensure Library staff's familiarity with the devices, training sessions shall be performed at the device and will occur at the place of performance.

C.3.3 Installation:

The Contractor shall provide installation services for equipment purchased under this contract. The equipment shall be installed at the place of performance in accordance with manufacturer specifications and shall integrate with Government network and security requirements.

C.3.4 Manufacturer's Warranty:

The Contractor shall provide a manufacturer's warranty of no less than four (4) years, from date of installation, for multifunction equipment purchased under this contract. Repairs, and or, replacement of any multifunction equipment purchased under this contract are pursuant to the manufacturer's warranty. Repairs, or replacement, of equipment under manufacturer's warranty shall be billed to the manufacturer directly. This warranty coverage shall include three (3) years of standard warranty coverage, and an additional year of warranty coverage if NLS uses Braillo/ATC braille paper for production of braille.

C.3.5 Replacement Parts:

The Contractor shall use, for any warranty service requests, Original Equipment Manufacturer (OEM) or replacement parts that meet or exceed the exact standards of the OEM and carry the same warranty.

C.3.6 Warranty Service:

The Government shall place warranty service requests to the Contractor per the manufacturer's warranty identified in paragraph C.4.5. Authorized Library personnel will make warranty service requests against this contract electronically via email to the Contractor. The email will record the date and time of the request, services required, name and title of requester, and serial number of equipment that needs warranty service. A statement with a list of individuals authorized

to make warranty service requests under this contract, identified by title, position, or by name, shall be furnished to the Contractor by the Contracting Officer's Representative (COR). Calls placed by individuals other than those specified by the COR shall not obligate the Government.

C.3.7 Service and Installation Experience:

The Contractor shall provide only trained and technically experienced personnel to perform warranty and installation services under this contract. This means the individuals shall possess the level of expertise required for the proper performance of the tasks required under this contract. Use of trainee personnel for warranty and installation services under this contract shall not be allowed, except when accompanied by, and under the direct supervision of, Contractor personnel meeting the requirements listed above.

C.3.8 Response Time:

Response time for warranty service requests shall be within 24 hours, excluding Federal holidays, to ensure that the NLS business operations are maintained. The Contractor shall provide no later than next business day service for parts and labor covered by the manufacturer's warranty on equipment purchased under this contract; e.g., a call placed between 7:30 a.m. and 5:30 p.m. (local time) on Monday shall be closed no later than 5:30 p.m. (local time) on Tuesday.

C.3.9 Reporting:

When arriving for warranty service requests, the Contractor shall report to the National Library Service for the Blind and Print Disabled Receptionist Desk, located in the Library's Adams Building, room number LA-303. The Contractor shall provide the National Library Service for the Blind and Print Disabled Receptionist Desk with a status of the repair and a brief description of the resolution before leaving the location. The Contractor shall give a copy of the Work Order (see Work Orders below) to the Receptionist Desk immediately upon completion of warranty service.

C.3.10 Work Orders:

All warranty service requests performed under this contract shall be accompanied by work orders that contain the following minimum information:

Name of Contractor

Date of delivery

Time call was placed by authorized NLS personnel

Name of authorized NLS personnel placing the call

Equipment model number

Equipment serial number

Library of Congress equipment barcode

Date and time of start of repair and date and time call was resolved

Total time to resolve call

Detail of warranty service performed

Itemized list of parts (including part number) and services furnished

C.3.11 Contractor Project Manager and Alternate Project Manager:

The Contractor shall identify and provide up-to-date contact information for a Project Manager and alternate who are able to address issues and concerns that arise during the period of performance for this contract. The Contractor Project Manager, and alternate, shall be available for discussion with the Contracting Officer Representative (COR) during normal Library business hours.

C.3.12 Government Responsibilities:

The Government will provide the Contractor with a detailed description of the problem, equipment location, and name of the authorized personnel making the service request against this contract.

C.4 TESTING AND QUALITY ASSURANCE

The Contracting Officer Representative (COR) or other authorized individual under this contract will perform inspection and acceptance of delivered equipment, and warranty service requests. The COR or other authorized individual will indicate acceptance on the equipment delivery ticket or work order.

SECTION D - PACKAGING AND MARKING

D.1 LC52.231-1 PAYMENT OF POSTAGE FEES (MAY 2015)

All postage and fees related to submission of information, including forms, and reports, etc., to the Contracting Officer or Contracting Officer's Representative (COR) or other persons designated to receive, shall be paid by the Contractor.

(End of Clause)

SECTION F - DELIVERIES OR PERFORMANCE

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.242-15	STOP-WORK ORDER	AUG 1989
52.242-17	GOVERNMENT DELAY OF WORK	APR 1984

F.1 LC52.211-2 DELIVERIES TO THE LIBRARY OF CONGRESS, CAPITOL HILL CAMPUS (JUN 2021)

(a) SAFETY. Trucks making deliveries to the Library of Congress must meet the following minimum clearances: 13 ft high, 9 ft wide and 20 ft long. Contractor vehicles exceeding that limitation shall not be permitted access to the Loading Dock area. The Contractor shall ensure that ceiling, doors or walls are not disturbed or damaged. The Contractor shall be held responsible for all costs of repairs to ceiling, doors, etc. and any secondary damage resulting from that damage. The maximum ceiling height inside the loading dock is 14'-8".

(b) SECURITY. The contractor must adhere to all Library of Congress and U.S. Capitol Police physical security protocols and offsite screening procedures. These requirements may change during the course of the contract and it is the responsibility of the contractor to stay in compliance with current regulations. The most current procedures for accessing only the Madison Loading Dock are as follows:

(c) SCREENING PROCESS FOR ALL VEHICLES COMING TO LIBRARY OF CONGRESS LOADING DOCKS & JEFFERSON EAST PARKING LOT FREIGHT ELEVATOR

Process includes all trucks, cars and vans coming to the LC Capitol Hill campus. All contractors are now required to notify the Off-Site Delivery Center (OSDC) no later than 24 HOURS PRIOR TO ARRIVAL (48-72 hours if possible)

Contractors are required to have a letter on file with the U.S. Capitol Police. The letter must be on company letterhead accompanied by signature of the owner, president or manager and sent directly to the OSDC email: OSDCAAdmin@USCP.GOV and the COR. The letter shall be protected with a password, and the password shall be sent separately. Requests for access must be renewed every year and should contain the following information:

1. Company Name,
2. Drivers/Employee Names requiring access,
3. Social Security Number for each Driver/Employee,
4. Date of Birth for each Drive Employee,
5. Driver License Number,
6. Vehicle make, model, tag number,
7. Building(s) to be accessed,
8. COR's name and phone number,
9. Contract number

All deliveries must include a Bill of Lading and designate a Library Point of Contact (POC) name and telephone number for deliveries. If making more than one delivery on the Hill, make the Library of Congress your last stop. If you do not, you will have to go through the screening process again after leaving the Library.

Vehicles leaving the Library are not resealed.

(d) DELIVERIES BEFORE 3:00 P.M. – OFF-SITE DELIVERY CENTER (OSDC)

The OSDC is open Mon-Fri. 4:30 a.m. to 3:00 p.m. at 4700 Shepherd Parkway S.W. for screening by the U.S. Capitol Police. Once cleared, proceed to D Street and Delaware Avenue S.W. (open Mon-Fri. 4:45 am – 3:00 pm) to gain access to Capitol Hill. The OSDC phone number is (202)224-0202.

When a vehicle enters the OSDC:

1. Drivers information is checked.
2. Truck unloaded and material X-rayed and screened.
3. Material is replaced and the vehicle is sealed.
4. Vehicle proceeds to Delaware Avenue, seal is verified, and truck is cleared to first destination.
5. If multiple deliveries on the Hill the vehicle will be resealed upon departure from each delivery location – except the Library of Congress.
6. Vehicle arrives at the Library of Congress. The seal is verified and removed by the police.

(e) DELIVERIES AFTER 3:00 P.M. Weekdays or Saturday – ALL DELIVERIES / WITH COORDINATION WITH USCP LIBRARY DIVISION (Exception basis for same day delivery only)

Provide all information as above and copy the Library Division at police_support@loc.gov (underscore between police and support) and a fax to (202) 707-1030 and include the estimated arrival time. The inspection location is the 600 block of New Jersey Ave. S.E., and C St NW near the power plant. Call the Library Division at (202) 707-1000 who will arrange for the vehicle to be swept. The vehicle will then be escorted to the Library. All containers have a designated placement location and the Contractor shall not leave any container in any area except those identified in this contract. This expressly designates Independence Avenue, C Street, 1st, 2nd, 3rd Streets and East Capitol Street, SE as areas off limits for staging of containers. All delivery vehicles shall have clearly identified company signage. Driver and all onsite staff shall wear distinguishable company uniform and/or company ID. The Contractor shall not travel beyond the dock area of the Madison Loading Dock. The Contractor shall comply with the Library security procedures. Contractor will be briefed by the COR on Library's security procedures currently in effect. The security procedures vary periodically.

(End of Clause)

F.2 LC52.215-5 PLACE AND PERIOD OF PERFORMANCE (JAN 2019)

The Contractor shall communicate any problems or potential delays to the Contracting Officer's Representative (COR) as soon as possible. Contractor shall deliver all deliverables to the COR at the following address:

The Library of Congress

National Library Service for the Blind and Print Disabled

Attn: Johnny Davis

101 Independence Ave, SE

Office: LA-303

Washington DC 20540-9360

The overall period of performance shall be as stated in section B.

The contractor is responsible for determining its hours of operation in fulfilling the requirements of this contract. The Library's standard operating hours are from 8:30 AM through 5:30 PM, Monday through Friday, excluding Federal holidays. The contractor shall coordinate with the COR for any work to be conducted at Library facilities.

(End of Clause)

SECTION G - CONTRACT ADMINISTRATION DATA

G.1 LC52.201-3 CONTRACT ADMINISTRATION (AUG 2015)

This contract will be administered by:

Library Contracting Officer: Brian D. Curl
Phone: (202) 707-3090
Email: bcurl@loc.gov

Library Contracting Officer Representative: TBD
Phone: TBD
Email: TBD

Contractor Contract Administrator: TBD
Phone: TBD
Email: TBD

G.2 LC52.232-1A LIBRARY OF CONGRESS INVOICE INSTRUCTIONS (OCT 2016)

The Contractor must prepare and submit invoices electronically to: nlsadmin@loc.gov. The Contractor may submit payment requests using other than electronic means only when alternate procedures are authorized by the contracting officer in writing.

(End of Clause)

G.3 LC52.232-2 SCHEDULE OF PAYMENTS (JUN 2015)

The contractor must submit invoices for payment upon delivery of the items or successful performance of the events identified below pursuant to the standards and acceptance criteria defined in this contract.

Paragraph Reference	Deliverable	Due Date	Payment Amount
C.3.	Braillo 600 SR2 with compressor including shipping, delivery, installation, and training	By 10/31/2026	TBD
C.3.4.	Four Year Warranty	Beginning at date of installation	TBD

(End of Clause)

SECTION H - SPECIAL CONTRACT REQUIREMENTS

H.1 LC52.201-1 CONTRACTING OFFICER'S REPRESENTATIVE (COR) APPOINTMENT AND AUTHORITY (JAN 2016)

(a) Performance of work under this contract is subject to the technical direction of the COR. The term “technical direction” includes, without limitation, direction to the contractor that directs or redirects the labor effort, shifts the work between work areas or locations, and/or fills in details and otherwise serves to ensure that tasks outlined in the contract are accomplished satisfactorily.

(b) Technical direction must be within the scope of the contract specification(s)/work statement. The COR does not have authority to issue technical direction that:

- (1) Constitutes additional work outside the contract specification(s)/work statement;
- (2) Constitutes a change as defined in the “Changes” clause of this contract;
- (3) Causes an increase or decrease in the contract price, or the time required for contract performance;
- (4) Changes any of the terms, conditions, or specification(s)/work statement of the contract;
- (5) Interferes with the contractor's right to perform under the terms and conditions of the contract; or
- (6) Directs, supervises or otherwise controls the actions of the contractor's employees.

(c) Technical direction may be oral or in writing. The COR must confirm oral direction in writing within five workdays, with a copy to the Contracting Officer.

(d) The Contractor shall proceed promptly with performance resulting from the technical direction issued by the COR. If, in the opinion of the contractor, any direction of the COR or the designated representative falls within the limitations of (b) above, the contractor shall immediately notify the Contracting Officer no later than the beginning of the next Government work day.

(e) Failure of the Contractor and the Contracting Officer to agree that technical direction is within the scope of the contract shall be subject to the terms of the “Disputes” clause of this contract.

(End of Clause)

H.2 LC52.203-1 CONTRACTOR PUBLICITY (OCT 2013)

The Contractor, or any entity or representative acting on behalf of the Contractor, may not refer to the equipment or services furnished pursuant to the provisions of this contract in any news release or commercial advertising, or in connection with any news release or commercial advertising, without first obtaining explicit written consent to do so from the Contracting Officer. Should any reference to such equipment or services appear in any news release or commercial advertising issued by or on behalf of the Contractor without the required consent, the Government will consider institution of all remedies available under applicable law.

(End of Clause)

H.3 LC52.204-2 CONDUCT ON LIBRARY PREMISES (JUL 2021)

1. Access to Library buildings and grounds is governed by 36 C.F.R. part 702 - Conduct on Library Premises. Contractor staff must comply with these requirements and restrictions and related Library of Congress Regulations and Directives.

2. The Library is committed to preventing and addressing all forms of discriminatory harassment and to ensuring that Equal Employment Opportunity (EEO) principles are fundamental to Library culture. Everyone — employees, interns, volunteers, contractors, researchers, and visitors — is expected to help make the Library a respectful environment free from offensive behavior.

a. Library of Congress employees, contractors, interns, volunteers, researchers, patrons, and other visitors have a right to Library facilities that are free from discrimination based on their race, color, national origin, religion, sex, sexual orientation, gender identity, age (40 and over), disability, genetic information, union affiliation, political affiliation, or marital status.

b. The Library does not tolerate discrimination – including sexual harassment, other forms of harassment, or a hostile work environment – based on these factors. The Library does not tolerate retaliation against anyone who engages in any form of protected EEO activity.

c. Contractor (including subcontractor) staff alleged to have engaged in discrimination or retaliation in the performance of this contract may be prohibited from entering Library facilities to perform work under their contracts. Contractors are required to promptly respond to all Library inquiries into allegations of discrimination, and must, in good faith, cooperate with Library investigations. Good faith cooperation includes, but is not limited to, making contractor staff available for:

1. Formal and informal interviews by Library agents investigating allegations of discrimination;
2. Reviewing and signing appropriate affidavits or declarations summarizing statements provided by such contractor staff during the course of an investigation;
3. Producing documents requested by the Library agents conducting the investigation; and
4. Preparing for and providing testimony in depositions or in administrative hearings.

(End of Clause)

H.4 LC52.237-1 KEY PERSONNEL (AUG 2014)

The personnel designated as key personnel in this contract are considered to be essential to the work being performed hereunder. At least 30 days prior to diverting any of the specified individuals to other programs or contracts or as soon as possible if an individual must be replaced, for example, as a result of leaving the employ of the contractor, the contractor shall notify the contracting officer and identify proposed substitutions. No diversion or substitution shall be made by the contractor without written consent of the contracting officer.

The following personnel have been identified as Key Personnel in the performance of this contract:

Position/Labor Category	Name
Project Manager	TBD
Alternate Project Manager	TBD

PART II - CONTRACT CLAUSES

SECTION I - CONTRACT CLAUSES

I.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of Clause)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-3	GRATUITIES	APR 1984
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT 2018
52.212-4	CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	NOV 2023
52.233-1	DISPUTES	MAY 2014
52.242-13	BANKRUPTCY	JUL 1995
52.253-1	COMPUTER GENERATED FORMS	JAN 1991

I.2 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2026)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(3) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232–40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

☐ (1) 52.203–6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☐ (2) 52.203–13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

☐ (3) 52.203–15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

☐ (5) 52.204–10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109–282) (31 U.S.C. 6101 note).

☐ (6) [Reserved]

☐ (7) 52.204–14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111–117, section 743 of Div. C).

☐ (8) 52.204–15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111–117, section 743 of Div. C).

☒ (9) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

☐ (10) 52.204–28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115–390, title II).

☒ (11)(i) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204–30.

☒ (12) 52.209–6, Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved]

☐ (15) 52.219–3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219–4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

- ☐ (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-6.
- ☐ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-7.
- ☐ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).
- ☐ (21)(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).
- ☐ (ii) Alternate I (NOV 2016) of 52.219-9.
- ☐ (iii) Alternate II (NOV 2016) of 52.219-9.
- ☐ (iv) Alternate III (JAN 2025) of 52.219-9.
- ☐ (v) Alternate IV (JAN 2025) of 52.219-9.
- ☐ (22)(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-13.
- ☐ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).
- ☐ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).
- ☐ (26) (i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-28.
- ☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).
- ☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).
- ☒ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).
- ☒ (32) 52.222-19, Child Labor—Cooperation with Authorities and Remedies (MAR 2026) (E.O. 13126).
- ☐ (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).
- ☐ (34)(i) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).
- ☐ (ii) Alternate I (FEB 1999) of 52.222-26.
- ☐ (35)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- ☐ (ii) Alternate I (JUL 2014) of 52.222-35.
- ☐ (36)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
- ☐ (ii) Alternate I (JUL 2014) of 52.222-36.
- ☐ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

- ☐ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
- ☒ (39)(i) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (40) 52.222-54, Employment Eligibility Verification (JAN 2025). (E.O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)
- ☐ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C.6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (44) 52.223-20, Aerosols. (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (45) 52.223-21, Foams (MAY 2024). (42 U.S.C. 7671, *et seq.*).
- ☐ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671I).
- ☐ (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).
- ☐ (ii) Alternate I (JAN 2017) of 52.224-3.
- ☐ (48)(i) 52.225-1, Buy American—Supplies (OCT 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (OCT 2022) of 52.225-1.
- ☐ (49)(i) 52.225-3, Buy American—Free Trade Agreements—Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ☐ (ii) Alternate I [Reserved].
- ☒ (iii) Alternate II (JAN 2025) of 52.225-3.
- ☐ (iv) Alternate III (FEB 2024) of 52.225-3.
- ☐ (v) Alternate IV (OCT 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note
- ☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).

- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).
 - ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513)
 - ☐ (56) 52.229–12, Tax on Certain Foreign Procurements (FEB 2021).
 - ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
 - ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
 - ☐ (59) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).
 - ☒ (60) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).
 - ☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).
 - ☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).
 - ☐ (63) 52.240–1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C. 3901 note prec.).
 - ☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).
 - ☐ (65)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).
 - ☐ (ii) Alternate I (APR 2003) of 52.247-64.
 - ☐ (iii) Alternate II (NOV 2021) of 52.247-64.
- (c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:
- ☐ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).
 - ☐ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
 - ☐ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
 - ☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
 - ☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

[] (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

[] (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

[] (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

[] (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

[] (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records—Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203–13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(v) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(vi) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

(vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

(B) Alternate I (DEC 2023) of 52.204–30.

(viii) 52.219–8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219–8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222–26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222–35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)(A) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62 Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)(A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226–6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232–40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232–40.

(xxvi) 52.240–1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C.3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of Clause)

I.3 LC52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL ITEMS (DEV) (FEB 2016)

FAR 52.212-4, Contract Terms and Conditions – Commercial Items. The clause is modified as follows:

(1) The Library will apply FAR 52.243-1 (Changes – Fixed Price) to any changes under this contract instead of section (c).

(2) The reference in section (d) to the Disputes clause at FAR 52.233-1 refers to the clause as modified by the Library.

(3) The references in section (g)(2) and (i)(2) to the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 C.F.R. part 1315 refer instead to the Prompt Payment clause at FAR 52.232-25 as modified by the Library.

(End of Clause)

I.4 LC52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS - COMMERCIAL ITEMS (DEV) (MAY 2015)

FAR 52.212-5, The clause is modified as follows:

(1) The Librarian of Congress has the same rights and access provided to the Comptroller General in FAR 52.212-5.

(End of Clause)

I.5 LC52.232-25 PROMPT PAYMENT (DEV) (JUL 2013)

The Library of Congress is not an agency subject to the Prompt Payment Act. 31 U.S.C. 3901(a)(1). The clause is modified as follows:

(1) The following new paragraph (iv) is added to the conditions for paying interest penalty payments in section (a)(4): “(a)(4)(iv) The contract or purchase order contained a provision that expressly required the Library of Congress to pay an interest penalty.”

(2) The reference in section (a)(5)(ii) to the Disputes clause at FAR 52.233-1 refers to the clause as modified by the Library.

(3) Section (a)(6) is replaced with the following: “Interest penalty payments shall be handled in accordance with the Prompt Payment clause at FAR 52.232-25 as modified by the Library.”

(4) Section (b) relating to Contract Financing Payment is deleted.

(End of Clause)

I.6 LC52.233-1 52.233-1 (DEV) DISPUTES (MAY 2014)

To reflect the provisions of the Legislative Branch Appropriations Act, 2008 (Pub. L. 110-161, div. H., title I, § 1501, Dec. 26, 2007, 121 Stat. 2249, 31 U.S.C. 702 note), the clause is modified as follows:

The amount in sections (c), (d)(2)(i), and (e) is \$50,000 instead of \$100,000.

See also regulations of the Government Accountability Office Contract Appeals Board at 4 C.F.R. part 22.

(End of Clause)

PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS**SECTION J - LIST OF ATTACHMENTS**

File Name	Number of Pages	Date
Attachment J-1 – Brand Name Justification	4 Pages	05/06/2026
Attachment J-2 – Price Schedule	1 Excel Sheet	05/06/2026

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.204-7	SYSTEM FOR AWARD MANAGEMENT	NOV 2024
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING	AUG 2020

L.1 LC52.215-3 PROPOSAL SUBMISSION INSTRUCTIONS – LOW PRICE TECHNICALLY ACCEPTABLE (JUL 2016)

L.1.1 General Information to Offerors

This section discusses general submission instructions and quote requirements. Offerors must comply with the submission instructions specified in the solicitation. The Library has the right at its discretion, to determine an offer ineligible for award if an Offeror does not comply materially with the submission instructions.

L.1.2 Quote Submission Instructions

Businesses shall submit their quotes to Brian Curl, Contracting Officer at bcurl@loc.gov. Quotes are due no later than the date and time shown in Box 8 on the first page of this solicitation. Businesses must not submit zipped files. The email containing your quote must have the RFQ number in the subject line (030ADV26Q0177). The total maximum file size of all attached files cannot exceed 20MB due to restrictions on the LOC's email system. If needed, businesses may submit multiple emails and ensure they are clearly identified. Quotes must include the solicitation number, business name, mailing address, telephone number, and SAM UEI number.

L.1.3 Questions and Due Dates

(a) To be considered, all questions pertaining to this solicitation must be submitted via email to Brian Curl, Contracting Officer at bcurl@loc.gov no later than 05/13/2026. It is the Library's intention to award without engaging in communications/clarifications if possible, so questions regarding all aspects are highly encouraged. All questions and answers shall be provided to all potential businesses, but it shall not be revealed which business asked which questions. The Library reserves the right to ignore questions received after this due date. However, it also reserves the right to answer pressing and pertinent questions received after this date.

L.1.4 Quote Contents

All submitted quotes must contain the following information:

- (a) Offerors shall provide sufficient information regarding the required goods to demonstrate conformity with all solicitation specifications and requirements, including evidence that the offeror is an authorized reseller of Braillo equipment and warranty information.
- (b) Offerors shall provide a firm fixed price for each deliverable identified in Section C. Offerors shall provide pricing by filling out the Price Schedule attached at J-1. Pricing for all deliverables must be submitted; no partial pricing will be accepted.
- (c) SF 1449: Offeror shall provide a signed copy of the SF 1449 to confirm offeror has read and agrees to comply with the terms and conditions of the solicitation.
- (d) Amendments: Offeror shall provide signed copies of any amendments issued to acknowledge receipt of amendments and to confirm that offeror has read and understood any amendments.

(End of Provision)

L2. LC52.233-2 PROTESTS TO THE LIBRARY OF CONGRESS (DEC 2013)

Offerors may submit a protest directly to the Contracting Officer or to the Government Accountability Office. Protests filed with the contracting officer will be decided promptly, and may be appealed to the Library's Senior Procurement Executive for purposes of conducting an independent review of the contracting officer's decision.

(End of Provision)

SECTION M - EVALUATION FACTORS FOR AWARD

M.1 LC52.215-4 EVALUATION – LOW PRICE TECHNICALLY ACCEPTABLE (JUL 2016)

M.1.1 Evaluation Information

The Library intends to award a contract resulting from this solicitation to the responsible offeror that provides a technically acceptable proposal at the lowest price.

Technical acceptability is defined as the ability to provide the embosser, including installation, training, and warranty required by the Library in the Statement of Work (Section C).

(a) The Library will evaluate the two (2) lowest priced quotes for technical acceptability of goods and services for conformity with the specifications and requirements identified in the solicitation. The Library will only evaluate additional quotes as required in the event those quotes are unacceptable.

Once the government determines the contractor that is best-suited (i.e., the apparent successful contractor), the government reserves the right to communicate with that contractor to address any remaining issues, if, necessary, and finalize a contract with that contractor. These issues may include technical and price. If the parties cannot successfully address any remaining issues, as determined pertinent, at the sole discretion of the government, the government reserves the right to communicate with the next best-suited contractor based on the original analysis and address any remaining issues.

(b) The Library may contact the original equipment manufacturer (OEM) to verify that the reseller is authorized to provide the goods and/or services identified in the solicitation.

(c) The Library will establish the total evaluated price by adding the total price for each deliverable in Attachment J-1.

(End of Provision)

End of Document